



Visual Evidence of New Structures at CEMEX Lyons

Implications to Nonconforming Status

September 2nd, 2023

What types of structural additions could terminate nonconforming status?

New Buildings: Constructing an entirely new building on the property that is related to the nonconforming use.

Floor Area Increase: Expanding the existing structure to increase its floor area.

Height Modification: Increasing the height of an existing building related to the nonconforming use.

Exterior Changes: Making significant changes to the building's facade or exterior could potentially qualify if it alters the building's original footprint or height.

Accessory Structures: Adding structures that serve as accessories to the main nonconforming use, like a storage shed or a detached garage, could be restricted.

Land Area Occupation: Expanding the land area that the nonconforming use occupies, such as by adding parking lots or other outdoor facilities, could also fall under this category.

Hazard or Nuisance Creation: Any addition or alteration that creates or intensifies hazards or nuisances on or off the property.

Structural Member Replacement: According to the code, even the "removal or replacement of any structural member" could qualify if it's in a use where the County can't enforce the Code due to legal principles like estoppel, laches, or waiver.

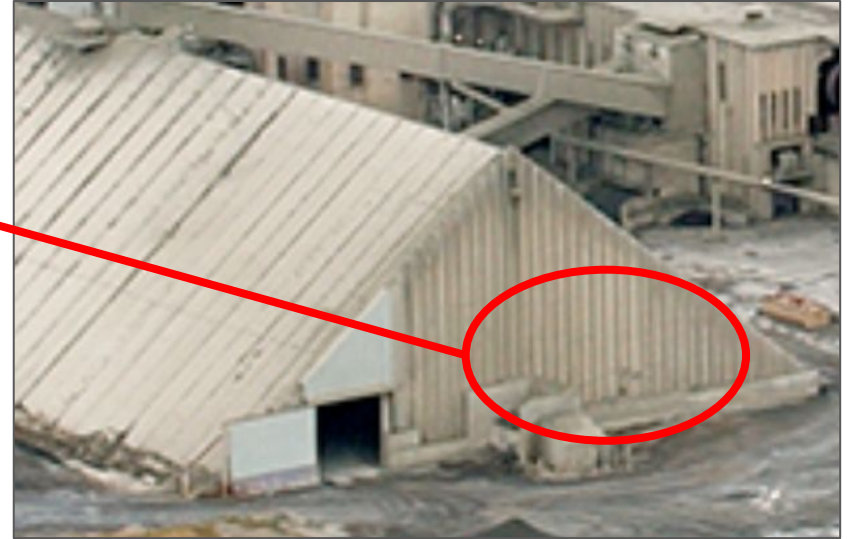
Equipment Upgrades: While not strictly a 'structural addition,' replacing or upgrading outmoded or worn equipment may require attention if such activity intensifies the use of land or its need for services.



Clinker Storage Building: New Structures



Photo from November, 2022



[Photo from BoulderCounty.gov](http://BoulderCounty.gov)

Mobile Equipment Shed: New Structures



November, 2022



[Photo from BoulderCounty.gov](http://BoulderCounty.gov)

Stack: New Structures



November, 2022



[Photo from BoulderCounty.gov](https://www.bouldercounty.gov)

Lime/Carbon Silos: New Structure



November, 2022



[Photo from BoulderCounty.gov](http://BoulderCounty.gov)

Preheater Tower: Major Alterations



November, 2022



[Photo from BoulderCounty.gov](https://www.bouldercounty.gov)

Installed Oxygen Plant (1999 - ??): New Structures

Figure 5: VSA oxygen production unit



“This [oxygen] plant has been in operation since August 1999 (Figure 5)”

[Source: May 2001 International Cement Review Article](#), John W. Lohr, Fmr Plant Manager, CEMEX Lyons

Figure 1: liquid oxygen supply system



Removal of Oxygen Plant (??)



November, 2022



[Photo from BoulderCounty.gov](https://www.bouldercounty.gov)

Conclusion

- **New structures** have been added to CEMEX Lyons since the Land Use Code was adopted in 1994
 - Several are non-trivial and clearly exceed 12 feet in height
 - Several expand the footprint and the floor area
 - Several alterations clearly not “normal or routine maintenance”
- At least one **large oxygen plant was constructed** in 1999 **without any permits**
 - Oxygen is a flammable gas and represents a health & safety hazard
 - Detailed in [May 2001 article](#), authored by John W. Lohr (fmr Lyons Plant Manager)
 - Part of an **unpermitted \$10.3MM** Lyons Plant Expansion project to increase production from 450,000 tons/yr → 575,000 tons/yr, which resulted in increased pollution, CO² emissions, NO_x, fugitive trust, and truck traffic – all **nuisances, health hazards for the community and an increase in the intensity of the use of the land and its services.**
 - Contributed to EPA lawsuit vs. CEMEX; settled with EPA & State of Colorado, but **not** Boulder County
- CEMEX should be held to the same legal standards as any other Boulder County property owner
- We urge Boulder County to take decisive action, terminate the nonconforming use, and **require CEMEX Lyons to file for a Special Use Permit** to be in conformity with the Land Use Code.

Appendix

Nonconforming Use Termination (Section 4-1003.C.1.a)

“The right to continue a nonconforming use terminates immediately when [there is an] **addition of a new structure containing or accessory to the nonconforming use.**”



Nonconforming Use Termination (Section 4-1003.C.1.b)

“The right to continue a nonconforming use **terminates immediately** when the nonconforming use is enlarged, expanded, extended or altered [through] enlargement or alteration of a structure containing or accessory to the nonconforming use, including but not necessarily limited to an **increase in floor area**, an **increase in height**, or **any other alteration or improvement in excess of normal or routine maintenance of the structure.**”



Nonconforming Use Termination (Section 4-1003.C.1.d)

“The right to continue a nonconforming use **terminates immediately** when [there] is **any** other enlargement or alteration of the nonconforming use which has the effect or threatened effect of creating a **hazard or nuisance on or off the property**, of **adversely affecting the character of the neighborhood**, or of intensifying the use of the land or its **need for services**.”



*Note: This is a very broad clause that can be triggered by **any enlargements or changes** to the nonconforming use that potentially threaten public health and safety, create a nuisance, hazard, or intensify use of the land or services.*

[Source: Boulder County Land Use Code](#)

What are examples of nuisances?

- **Excessive noise:** A use that generates excessive noise, such as a loud construction site, can be considered a nuisance if it disrupts the peaceful enjoyment of nearby properties.
- **Odors:** A use that generates offensive odors, such as a livestock operation or a waste treatment facility, can be considered a nuisance if it causes discomfort or inconvenience to nearby residents.
- **Visual impacts:** A use that has a negative visual impact on the surrounding area, such as a billboard or a poorly maintained property, can be considered a nuisance if it affects the aesthetics of the community.
- **Health hazards:** A use that poses a health hazard, such as an abandoned building with lead paint or a hazardous waste storage facility, can be considered a nuisance if it poses a risk to the health and safety of the community.
- **Traffic congestion:** A use that generates excessive traffic can be considered a nuisance if it causes congestion and delays on the roads.



Nonconforming Use Termination (Section 4-1003.C.1.e)

“The right to continue a nonconforming use **terminates immediately** when the nonconforming use is enlarged, expanded, extended or altered [through] **removal or replacement of any structural member** in a use for which the County is precluded from enforcing this Code specific to use on the basis of estoppel, laches, or waiver.”



What are examples of nuisances?

- **Excessive noise:** A use that generates excessive noise, such as a loud construction site, can be considered a nuisance if it disrupts the peaceful enjoyment of nearby properties.
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Exhibit 1: Plant Map

Source: DRMS 2023-08-015 Bond Calculation Adequacy Response - M1977208



BoulderCounty.gov Photo (Date Unknown)



Photo from November, 2022

